

Willful Mistakes

and official levels continue to haunt the survivors
slap on the wrist and the main accused roams free



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- For 18 years, the CBI failed to get Anderson extradited and made one unsuccessful attempt in 2003.

- The request for extradition was rejected by the US Government on the grounds that it does not constitute an offence as per US law. In 2004, the CBI asked the Ministry of External Affairs to request the US authorities to reconsider the decision. After spending Rs 2,09,000, the CBI gave up.

- B.R. Lall, former joint director of CBI, who investigated the disaster has charged that the Narasimha Rao government forced him not to press for extradition of Anderson and that the CBI was forced by the Ministry of External Affairs officials not to follow Anderson's extradition. Lall was in charge of the probe from April 1994 to July 1995.

- The criminal case was tried under the archaic Indian Penal Code, 1860 and Indian Evidence Act, 1872. The trial couldn't begin because of the wait for the claims settlement in 1989.

- Even as the compensation hearings were on, UCC and the Government of India reached a settlement in 1989 which stipulated that UCC would pay \$470 million as compensation and the Government would withdraw cases against the accused.

- In all, 30 major hazards had been identified through a safety audit of UCC's Bhopal factory. Yet the CBI decided to charge Union Carbide and its officials only with criminal negligence. For criminal indifference to human life and health, UC and its officials could have been charged with culpable homicide, punishable by life.